

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

10. JENNIFER WEISSENSEE V. DAVID KRUEGER

22FLL0584

On December 19, 2025, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. The RFO and a blank FL-320 were served on December 23rd, however there was no Notice of Tentative Ruling served.

Petitioner filed her Responsive Declaration to Request for Order on February 13, 2026, it was served on February 12th.

On February 20th, Respondent filed an Objection to Petitioner's Response and Reply. However, the parties filed a Stipulation Re: CCRC and Child Visitation and Order on February 23rd wherein Respondent waived his objection and the parties stipulated to be re-referred to Child Custody Recommending Counseling (CCRC).

The court adopted the stipulation of the parties, re-referred them to CCRC and set a review hearing for the present date. Supplemental declarations were due to be filed and served no later than 10 days prior to the hearing date.

The parties attended CCRC on March 26th. A report with recommendations was prepared and mailed to the parties on May 7th.

Respondent and Petitioner each filed and served a supplemental declaration on May 7th.

Respondent is requesting joint physical custody of the minor children with increased visitation time. He further asks that the parties be ordered to refrain from interrogating the children on their time with the other parent and any co-parenting issues to be brought to the attention of the other party by way of the Talking Parents app.

Petitioner asks the court to maintain the custody and visitation orders set forth in the February 23rd stipulation of the parties. She asks that the minors participate in individual therapy and Respondent to do the same. She further requests an order for the parties to attend co-parenting classes, an order precluding Respondent from consuming alcohol during his parenting time, and an order that no third party be present during Respondent's parenting time with the minors.

After reviewing the filings as outlined above, the court finds the recommendations contained in the May 7, 2026 CCRC are in the best interests of the minors. They are hereby adopted as the orders of the court.

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Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: AFTER REVIEWING THE FILINGS AS OUTLINED ABOVE, THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE MAY 7, 2026 CCRC ARE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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11. DAVID BELL V. MEGAN GUERRERO

24FL0556

Respondent filed an ex parte application for emergency orders on November 13, 2025. The court denied the ex parte application on November 17, 2025. The parties were referred to an emergency set Child Custody Recommending Counseling (CCRC) appointment on December 9, 2025, with a review hearing scheduled for January 8, 2026. On November 17th Respondent filed a Request for Order (RFO) seeking custody and parenting plan orders, as well as a finding that Family Code section 3044 has been rebutted. Proof of Service shows Petitioner was mail served on November 25, 2025.

Both parties attended the CCRC appointment on December 9, 2025. A report with recommendations was filed with the court on December 31, 2025. Copies were mailed to the parties the same day.

Parties appeared for the hearing on January 8, 2026. The court inquired of the parties as to the status of the Domestic Violence Restraining Order Request by Respondent in San Joaquin County as well as the pending criminal charges against Petitioner in San Joaquin County. The court made parenting plan orders and set a review hearing for February 26, 2026. The court directed parties to file and serve Supplemental Declarations at least 10 days prior to the review hearing.

Respondent filed a Supplemental Declaration on February 10, 2026. It was mail served the same day. Respondent asserts the current parenting plan is working well and requests additional parenting time. Respondent seeks clarification as to communication between the parties.

Petitioner filed a Responsive Declaration on February 13, 2026. The court deems this to be a Supplemental Declaration. Petitioner seeks an immediate termination of overnight parenting time with Respondent.

Petitioner filed a Responsive Declaration on May 7, 2026. The court deems this to be a Supplemental Declaration. Respondent was mail served on May 7, 2026.

Respondent filed a Supplemental Declaration on May 7, 2026. It was served on Petitioner on May 7, 2026.

The court finds it must take testimony as to the Family Code section 3044 presumption. As such, the parties are ordered to appear to select Mandatory Settlement Conference and trial dates.